

IN RE: KNECHT

Case Number: 25CV-0206916

Tentative Ruling on Petition for Change of Name: Petitioner Tina Lynn Knecht seeks to change her name to Tina Lynn Mendez. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

RABO AGRIFINANCE, LLC VS. WOOLERY, ET AL.

Case Number: CVCV21-0198097

Tentative Ruling on Motion to Be Relieved as Counsel: Jacob Wright of McCarthy & Rubright, LLP moves to be relieved as counsel for Defendants West and Ruth Wollery, dba Wollery Livestock. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. It requires the use of mandatory Judicial Council forms and evidence supporting service of all forms, including the proposed order, on the client as well as information related to why the motion has been brought instead of filing the substitution of attorney. CRC 3.1362(c) requires the supporting declaration to provide an explanation as to why the motion is necessary in place of a filing a consent to substitution under CCP § 248(1). Counsel's declaration and motion provide the requisite justification to be relieved, show proper service of all required documents and that the motion was served at the client's current address. The declaration also establishes that counsel confirmed Plaintiff's mailing address within the last 30 days by telephone. The Court finds that the requirements of CRC 3.1362 have been satisfied. The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed. Counsel is relieved effective upon filing of the proof of service of the signed order upon the clients.

SANCHEZ VS. ACV AUCTIONS, INC., ET AL.

Case Number: 24CV-0206455

Tentative Ruling on Motion to Compel Arbitration: This is an employment action alleging harassment, wrongful termination, and wage and hour causes of action. Defendant ACV Auctions, Inc. moves to compel arbitration. Plaintiff Sanchez opposes the Motion.

Merits: The Federal Arbitration Act ("FAA") like California law, codifies the strong public policy in favor of enforcing arbitration agreements. 9 U.S.C. § 1 et seq. The FAA applies to any written arbitration agreement in a contract evidencing a transaction involving interstate commerce. *Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 25, 277. A party seeking to enforce an arbitration agreement has the burden of showing FAA preemption. (*Woolls v. Superior Court* (2005) 127 Cal.App.4th 197, 211.) Here, the Court finds that the FAA applies, as the Agreement expressly so states.

Existence of Agreement: CCP § 1281.2 requires the Court to grant a petition to compel arbitration where it determines that an agreement to arbitrate the controversy exists. The court makes this determination in a summary process. (See § 1290.2.) "[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: "Because the existence of the agreement is a statutory prerequisite to granting the

[motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) *Gamboa v. Ne. Cmty. Clinic* (2021) 72 Cal.App.5th 158, 164–65. However, the burden of production may shift in a three-step process. First, the moving party bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Rosenthal, supra*, 14 Cal.4th at p. 413.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541) ... For this step, “it is not necessary to follow the normal procedures of document authentication.” *Gamboa, supra*, 72 Cal.App.5th at 165.

Here Defendant has met its burden of producing prima facie evidence of a written agreement to arbitrate. Defendant attaches a copy of the agreement purporting to bear Plaintiff’s electronic signature. If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*See Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219.) Here, Plaintiff does not dispute the existence of the agreement or challenge its authenticity. Therefore the Court finds that an agreement to arbitrate exists.

Enforceability of Agreement: Once the Court “determines the agreement to arbitrate exists, it should then decide the other objections to its enforceability. The court must grant the petition “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (§ 1281.2.)” *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219. Plaintiff bears the burden of showing unconscionability by a preponderance of the evidence. *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1468. ‘[U]nconscionability has both a “procedural” and a “substantive” element,’ the former focusing on “‘oppression”’ or “‘surprise”’ due to unequal bargaining power, the latter on “‘overly harsh”’ or “‘one-sided”’ results. [Citation.] ‘The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ [Citation.] But they need not be present in the same degree. ... [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa. *Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114. Here, Plaintiff alleges both procedural and substantive unconscionability.

The parties agree that Plaintiff was hired by ACV on or about March 8, 2021 as a Vehicle Condition Inspector in California. On August 20, 2021, HR sent Plaintiff a compensation packet that contained the Arbitration Agreement at issue. Plaintiff electronically signed it on September 2, 2021. It provides that covered claims (those arising out of or relating to employment with ACV) shall be resolved by mandatory binding arbitration.

Procedural Unconscionability. Plaintiff argues that he did not have the requisite intent for a meeting of the minds and could not have consented to the Agreement. He argues that the Agreement was unilaterally formed and provided to Plaintiff for signature without any explanation of its significance. Plaintiff believed that he had no other option but to sign everything in the compensation packet as a condition of his continued employment. He argues that he was never given a reasonable opportunity to seek legal advice or negotiate any aspect of the agreement.

Defendant counters that Plaintiff's failure to read and understand the agreement he admits to signing is not a bar to its enforcement. Defendant is correct. See, e.g. *Desert Outdoor Advertising v. Superior Court* (2011) 196 Cal. App. 4th 866, 872 (a cardinal rule of contract law is that a party's failure to read a contract, or to carefully read a contract, before signing it is no defense to the contract's enforcement). ACV presented Plaintiff with the Agreement as part of a compensation package. Plaintiff signed the Agreement, which was titled "Employee and Company Arbitration Agreement" as a stand-alone document. Although the form Agreement was presented to Plaintiff by the employer on a take it or leave it basis, this is insufficient on its own to bar enforcement. California courts routinely find employment contracts of adhesion to be enforceable, absent additional findings of procedural and substantive unconscionability.

"The fact that the arbitration agreement is an adhesion contract does not render it automatically unenforceable as unconscionable. Courts have consistently held that the requirement to enter into an arbitration agreement is not a bar to its enforcement. (*Lagatree v. Luce, Forward, Hamilton & Scripps* (1999) 74 Cal.App.4th 1105, 1127, 88 Cal.Rptr.2d 664 ["[T]he cases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or leave it' basis."]; *Graham v. Scissor-Tail, Inc.* (1981) 28 Cal.3d 807, 817, 171 Cal.Rptr. 604, 623 P.2d 165, fns. omitted (*Graham*) [such adhesion contracts are an "inevitable fact of life for all citizens--business[person], and consumer alike"]; *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1292, 58 Cal.Rptr.3d 5 ["[T]he compulsory nature of a predispute arbitration agreement does not render the agreement unenforceable on grounds of coercion or for lack of voluntariness." [Citation.]]")."

Serafin v. Balco Properties Ltd., LLC (2015) 235 Cal. App. 4th 165, 179.

Plaintiff does not allege oppression or surprise. Plaintiff was sent this agreement electronically on August 20, 2021, and signed it September 2, 2021. This shows that Plaintiff was not unduly time pressured, and had ample time to consider the Agreement and to consult an attorney. The Agreement has a very low degree of procedural unconscionability. Therefore, it must be enforced unless the degree of substantive unconscionability is high. See, e.g., *Serpa v. California Sur. Investigations, Inc.* (2013) 215 Cal. App. 4th 695, 704.

Substantive Unconscionability. Plaintiff's opposition argues only that the Agreement is substantively unconscionable because it does not provide express provisions for Plaintiff's right to discovery, and does not attach a copy of the applicable discovery rules or procedures, such that Plaintiff does not know what discovery, if any, he would be entitled to if this matter is compelled to arbitration. The Agreement specifies that the American Arbitration Association rules apply and provides the website where they may be accessed. The Agreement also states that a copy of the AAA rules and procedures are available from the HR department for Employee's review. As a threshold issue, the Court notes that California courts typically treat failure to attach applicable rules as a question of procedural unconscionability, not substantive unconscionability. See *Peng v. First Republic Bank* (2013) 219 Cal. App. 4th 1462, 1471-72. Plaintiff does not argue that any other provisions of the Agreement would support a finding of substantive unconscionability. Nor does Plaintiff identify any feature of the AAA rules that prevent fair and full arbitration. Thus, this Court finds that the failure to attach the AAA rules is insufficient to make the Agreement unenforceable on either procedural or substantive grounds.

The Motion to Compel Arbitration and Stay Proceedings Pending Arbitration is **GRANTED**. A proposed order has been lodged with the Court and will be executed. The proceedings are hereby stayed. The Court will set this matter on the resolution review calendar for status of arbitration on **Monday, September 8, 2025, at 9:00 a.m. in Department 64**. The parties are ordered to provide a status report to the Court no later than five court days prior to the hearing.

TD BANK USA, N.A. VS. BASSETT

Case Number: 24CVG-00745

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff TD Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Laura Bassett by mail on September 13, 2024. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,988.00 U.S. CURRENCY

Case Number: 22CV-0201191

Tentative Ruling on Order to Show Cause Re Dismissal of Claim: An Order to Show Cause Re: Dismissal ("OSC") issued on February 4, 2024, pursuant to Gov't Code § 68608(b) to Claimant Marissa Duchi for failure to appear on January 27, 2025, as ordered on December 16, 2024. No response to the OSC has been filed. The Court **DISMISSES** Claimant's Claim Opposing Forfeiture for failure to appear. The clerk is instructed to prepare a separate Order Dismissing the Claim Opposing Forfeiture filed December 12, 2022. Today's 9:00 a.m. review hearing is confirmed.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Disclosure of Peace Officer Records: Plaintiff seeks disclosure of Peace Officer records pursuant to Evidence Code sections 1043 and 1045. Defendant City of Redding opposes the Motion.